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Counterfactual Mandate After Stay Dissolution

Filed: September 15, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

The Court entered an opinion and judgment dismissing this appeal and remanding the matter on June 8, 2026. Asterglen filed a timely motion to stay mandate on June 26 while preparing a petition for a writ of certiorari. The Court granted that motion on July 10 and prohibited issuance while the stay remained effective. Asterglen later advised that it would not pursue the proposed petition.

By order entered September 15, the Court dissolved the stay and released mandate for immediate issuance. No other order now withholds the judgment. The clerk therefore issues this mandate on September 15, 2026 in accordance with the dissolution and release order. The date follows the period during which affirmative relief blocked issuance; it is not calculated as seven days after a denial because no denial occurred.

The opinion and judgment are transmitted without modification. Ending the stay restores their operative effect and returns the matter to the district court. Asterglen's abandoned proposal for Supreme Court review creates no holding and no limitation on proceedings after remand.

Terms of the mandate

The appeal is DISMISSED, and the matter is REMANDED to the United States District Court for the Northern District of West Virginia. The February 4 Rule 54(b) order lacked an express statement that there was no just reason for delay while related claims were unresolved. The Court accordingly did not reach Asterglen's challenge to the January 12 partial summary judgment.

Nothing transmitted here vacates the dismissal of Count I with prejudice or adjudicates its correctness. The district court retains the pending interference claim against Meridian Silt and Copper Kestrel's \$120,000 counterclaim, including questions arising from shared communications and possible setoff. It may conduct further proceedings consistent with the June 8 opinion and the jurisdiction returned by this mandate.

The June 8 judgment directs each side to bear its own appellate costs under Federal Rule of Appellate Procedure 39(a)(1). The clerk shall send certified copies of the mandate, opinion, judgment, July 10 stay order, and September 15 dissolution and release order to the district clerk. Counsel shall receive notice of issuance today. This mandate states the existing disposition only and does not revive the contemplated certiorari filing or add reasons to the Court's jurisdictional decision.

ISSUED BY THE CLERK OF COURT